

THORNE VAUX LLP: KNOW-HOW NOTE

CHARTERPARTY WITHDRAWAL: THE AUTHORITIES

Matter: HAL-2025-0092

Client: Halveston Chartering Limited

Author: Sian Aldridge

Date: 4 February 2026

1. THE CURRENT POSITION

The Marisol [2025] UKSC 14 overrules The Aquitaine [2019] EWHC 2211 (Comm) on the construction of notice periods in withdrawal clauses. The Supreme Court held that banking days exclude the day of service.

2. CONSEQUENCE

Any advice relying on The Aquitaine for a notice-period calculation should be revisited. The change narrows rather than widens the window available to owners.

3. RELATED PARTIES

Halveston Chartering Limited is our client on this matter. Calder Shipping AG has appeared as a counterparty in two unrelated Halveston fixtures.

Sian Aldridge